

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
AUGUST 05, 2026
8:30 a.m.

3. EMMA GRIGORUK V. MICHAEL SMITH

22FL0632

This matter is before the court for (1) a Trial Setting Conference, as requested by the Respondent on April 21, 2026; and (2) hearing of the Request for Order (RFO) filed by the Respondent on May 08, 2026, to modify child custody and visitation.

The filing of the RFO prompted the court to refer the parties to a CCRC session set for June 25, 2026. To date, there is no proof of service for the RFO in the court's file. Further, the court is in receipt of a memorandum from the CCRC counselor dated June 25, 2026, indicating that neither party appeared at the CCRC session as scheduled (Petitioner reportedly contacted the CCRC counselor the day before the appointment stating she would not be able to attend because the parties' child was ill). Due to the lack of service, the court denies the RFO without prejudice.

On July 31, 2026, Petitioner filed a Responsive Declaration, a copy of which was served upon Respondent via mail on July 28, 2026, per the proof of service filed July 31, 2026.

In his request to set a Trial Setting Conference, Respondent indicated that the sole issue to be addressed at trial is property division. Appearances are required at 8:30 a.m., Wednesday, August 05, 2026, in Department 12 to participate in the selection of Mandatory Settlement Conference and Trial dates.

TENTATIVE RULING #3: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, AUGUST 05, 2026, TO PARTICIPATE IN THE SELECTION OF MANDATORY SETTLEMENT CONFERENCE AND TRIAL DATES, AND INQUIRE OF THE RESPONDENT REGARDING THE STATUS OF HIS REQUEST FOR ORDER.